

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Inessa Abayev	Team: Team # 8	CCRB Case #: 200912840	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/18/2009 12:30 AM	Location of Incident: Remsen Avenue and Avenue J	Precinct: 69	18 Mo. SOL 2/18/2011	EO SOL 2/18/2011	
Date/Time CV Reported Wed, 08/19/2009 11:25 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/19/2009 11:25 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM EreK Powers	08154	944907	069 PCT		
2. Officers			069 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Marisa Ofair	07040	939138	069 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A. Officers	Abuse: Officers stopped the car in which § 87(2)(b) was an occupant.				
B.POM EreK Powers	Discourtesy: PO EreK Powers acted rudely toward § 87(2)(b)				

Case Summary

§ 87(2)(b) called the CCRB on August 19, 2009, to file this complaint (encl. 4a-4b).

At about 12:30 a.m. on August 18, 2009, § 87(2)(b) was driving home in the vicinity of Remsen Avenue and Avenue J in Brooklyn when she was pulled over by two officers, PO Ere Powers and PO Marisa Ofair of the 69th Precinct. § 87(2)(b) toddler son and a friend, § 87(2)(b) were passengers in the car. The following allegations resulted from § 87(2)(b) interaction with the officers:

- **Allegation A- Abuse of Authority:** Officers stopped the car in which § 87(2)(b) was an occupant. § 87(2)(g)
- **Allegation B- Discourtesy:** PO Ere Powers acted rudely towards § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) Hispanic female with brown hair and brown eyes. She is 5'5" tall and weighs 119 pounds. § 87(2)(b) works at § 87(2)(b) as a § 87(2)(b).
- § 87(2)(b) provided a phone statement on August 25, 2009 (encl. 5) and was interviewed at the CCRB on August 27, 2009 (encl. 6a-6h). § 87(2)(g)

At approximately 12:30 a.m. on August 18, 2009, § 87(2)(b) was driving home in Brooklyn with two passengers: her son and a friend, § 87(2)(b). Her son was sitting in the back seat and § 87(2)(b) sat in the front passenger's seat of § 87(2)(b) vehicle. § 87(2)(b) noticed a patrol car driving behind her shortly before she crossed Remsen Ave onto Ave J. § 87(2)(b) continued to drive another block and a half when the officers pulled § 87(2)(b) over. Two uniformed officers, identified as PO Ere Powers and PO Marisa Ofair through the investigation, pulled up in back of her car, stepped out and approached her vehicle. PO Powers approached the driver's side while PO Ofair approached the passenger's side of the vehicle. PO Ofair flashed her flashlight in the backseat of the car, while PO Powers asked for § 87(2)(b) license and registration. PO Ofair walked away and sat back into the patrol car.

§ 87(2)(b) then handed PO Powers her license and registration. PO Powers flashed his flashlight into § 87(2)(b) purse which was on her lap and open. The purse has a latch closing, making it easy to see its contents. He noticed a § 87(2)(b) in § 87(2)(b) purse. PO Powers asked § 87(2)(b) whether she had an accompanying ID for § 87(2)(b). § 87(2)(b) replied that she did, and handed PO Powers her § 87(2)(b) and summons ID. PO Powers asked where the IDs are from. § 87(2)(b) stated that they were from § 87(2)(b). PO Powers again asked where the IDs were from. § 87(2)(b) repeated that the IDs belonged to § 87(2)(b), and said that her ID contained all the information she was stating, as well as other information. The officers then walked back to the patrol car with 4 items: § 87(2)(b) license, registration, and the two work IDs.

After a few minutes, § 87(2)(b) stepped out of her vehicle and walked over to the patrol car to retrieve her IDs so that they would not be misplaced. § 87(2)(b) knocked on the patrol car's driver window, which was rolled up, to get PO Powers' attention. § 87(2)(b) began asking for her IDs back, when PO Powers yelled "Get back in the car" over the loudspeaker. § 87(2)(b) stated that she needed her IDs back, and asked for PO Powers' name and shield number. PO Powers did not answer, and § 87(2)(b) returned to her car.

PO Powers approached § 87(2)(b) car carrying two summonses, her license and her registration. He threw the items in § 87(2)(b) face as though flinging them at her, causing them to scatter around the car. One of the summons landed near § 87(2)(b)'s feet, the other summons landed near § 87(2)(b) feet, and the registration landed near the armrest. § 87(2)(b) felt the license hit her face, but was unable to locate it afterwards and believed that the license subsequently fell out of the window. PO Powers walked away. § 87(2)(b) turned to § 87(2)(b) and commented, "I can't believe he did this." § 87(2)(b) asked, "Did he just throw this in your face?" § 87(2)(b) confirmed that he did. § 87(2)(b) then stepped out of the car with a pen and paper in order to write down the patrol car number. PO Powers yelled, "Oh it's Officer Powers" and stated the patrol car number. PO Powers then laughed, and the officers drove away. § 87(2)(b) stayed at the location to look for her missing items.

Afterwards, § 87(2)(b) drove to the Precinct stationhouse to file a complaint and to notify the officers there that PO Powers still had her work IDs. The desk officer called PO Powers regarding the allegation, however he stated that he did not have the items.

§ 87(2)(b) received two summonses § 87(2)(b). § 87(2)(b) thought that she was pulled over because of her tinted car windows.

Attempts to Contact Civilians:

The undersigned investigator called § 87(2)(b) five times between September 16 and October 21, 2009, and left her four voicemail messages. § 87(2)(b) called on October 21, 2009 and expressed her interest in providing a statement, but did not respond to a final voicemail left by the investigator that same day. The investigation also sent § 87(2)(b) two letters regarding this case on September 29 and October 19, 2009. § 87(2)(b) has not since contacted the CCRB.

NYPD Statement(s):

Subject Officer: PO EREK POWERS

- PO Erik Powers is a § 87(2)(b)-old black male with black hair and brown eyes. He is 5'8" tall and weighs 150 pounds.
- On August 18, 2009, PO Powers worked from 12 a.m. to 8 a.m. He was assigned to patrol sector B and D in RMP 2145 with PO Marisa Ofair. Both officers were dressed in uniform.

Memobook

PO Powers had the following memobook entries relating to this incident (encl. 9a-9c):
"00:52: car-stop Ramsen & J Ave; 0100: 96."

CCRB Testimony

PO EreK Powers was interviewed at the CCRB on December 23, 2009 (encl. 10a-10b).

At approximately 1:30 a.m. on August 18, 2009, PO EreK Powers and PO Marisa Ofair were stationed in their marked patrol car on East 93rd Street facing southbound on Avenue J in Brooklyn when they observed a motorist pass through a stop sign. The motorist was identified as § 87(2)(b) through the investigation. § 87(2)(b) then drove another two blocks to Remsen Avenue and Avenue J, where she passed a red light without stopping. PO Powers, the driver, turned on the patrol car's lights and drove a couple of blocks to catch up with her. § 87(2)(b) pulled over on Remsen Ave and Avenue J. PO Powers parked behind § 87(2)(b) and both officers approached her car. PO Powers approached the driver's seat where § 87(2)(b) sat while PO Ofair approached the front passenger's seat, where § 87(2)(b) was seated. There was a small child in the back passenger's seat.

PO Powers informed § 87(2)(b) that she had passed a stop sign and red light, and asked to see her driver's license and registration. § 87(2)(b) responded, "I'm not giving you shit." (During his interview, PO Powers did not state the word "shit" as he preferred not to use profanity.) § 87(2)(b) took § 87(2)(b) and "stuffed" it in PO Powers' face. PO Powers asked for her driver's license and registration about two more times before she provided them to him, along with her insurance card. He returned to the patrol car with three items: § 87(2)(b) driver's license, registration and insurance card. PO Powers stated that he did not take her § 87(2)(b) at any point. Both officers then returned to the patrol car, where they remained seated for ten to fifteen minutes while PO Powers wrote out two summonses.

§ 87(2)(b) and § 87(2)(b) waited in the vehicle. PO Powers returned to § 87(2)(b) vehicle with her driver's license, registration, insurance card and two summonses. He told § 87(2)(b) that he had issued her two summonses and informed her of the infractions, and handed all of documents to her, along with her summonses. § 87(2)(b) took the items when PO Powers handed them to her. PO Powers told § 87(2)(b) to drive safely and went back to his patrol car. He did not interact with the passengers at any point. Upon returning to the Precinct stationhouse, PO Powers was informed that § 87(2)(b) had filed a complaint about him.

PO Powers stated that he did not throw any items at § 87(2)(b) through her car window. PO Powers stated that neither § 87(2)(b) nor her passenger asked for his name and shield at any point. Neither he nor PO Ofair used the loudspeaker to state anything to the civilians during this incident.

Subject Officer: PO MARISA OFAIR

- PO Marisa Ofair is a § 87(2)(b)-old black female with black hair and brown eyes. She is 5'9" tall and weighs 180 pounds.
- PO Ofair worked from 11:15 p.m. on August 17 to 7:15 a.m. on August 18, 2009 with PO EreK Powers, both of whom were assigned to patrol sector BD in RMP #2507. She was dressed in uniform.

Memobook

PO Ofair did not have any memobook entries relating to this incident (encl. 7a-7c).

CCRB Testimony

PO Ofair was interviewed at the CCRB on December 1, 2009 (encl. 8a-8b).

At about 12:30 a.m. on August 18, 2009, PO Ofair and PO Powers observed § 87(2)(b) pass a stop sign on East 93rd Street and Avenue J in Brooklyn. § 87(2)(b) continued to travel westbound on Avenue J for another three blocks. PO Powers and PO Ofair pulled over § 87(2)(b) vehicle at a red light across from Ramsen Avenue and Avenue J. PO Ofair stated that § 87(2)(b) stopped at the red light, which is where the officers indicated that she pull over. The officers parked in back of § 87(2)(b) car and stepped outside. PO Powers approached § 87(2)(b) at the driver's side. PO Ofair approached the front passenger's side, where § 87(2)(b) was seated. PO Powers asked § 87(2)(b) for her driver's license, registration and insurance card, however § 87(2)(b) presented PO Powers with her § 87(2)(b) instead. PO Powers then asked to see her ID card, and § 87(2)(b) showed him her accompanying ID. PO Powers did not touch § 87(2)(b) § 87(2)(b) or work ID at any point. § 87(2)(b) also provided her driver's license, registration and insurance card.

PO Powers returned to the patrol car with § 87(2)(b) driver's license, registration and insurance card. PO Ofair also returned to the patrol car. Inside of the car, PO Powers told PO Ofair that § 87(2)(b) had made a discourteous comment to him, however PO Ofair did not remember the content of the remark. PO Powers planned to let § 87(2)(b) go prior to her making the comment. The officers began looking at § 87(2)(b) paperwork and writing her summons when they observed her step out of her vehicle. PO Ofair told § 87(2)(b) to get back in her car twice over the microphone. § 87(2)(b) complied and did not say anything in response. About two to three minutes later, both officers returned to § 87(2)(b) car. PO Powers gave § 87(2)(b) her paperwork and a summons for § 87(2)(b). § 87(2)(b) took the items, and asked PO Powers for his name and shield number after she was given the summons. He stated his name and shield, and said that it was on the summons as well. The officers then began walking back to their vehicle when § 87(2)(b) yelled something to the effect of "It's gonna be taken care of" or "thrown away," or that she was not going to worry about the summons. After the incident ended, an officer called PO Powers and PO Ofair and informed them that they were alleged to be possession of § 87(2)(b) § 87(2)(b) and ID card.

PO Ofair did not see PO Powers throw § 87(2)(b) documents or her summons at § 87(2)(b) through the window. The officers did not take § 87(2)(b) § 87(2)(b) to the patrol car with them.

PO Ofair stated that she only witnessed § 87(2)(b) pass through a stop sign. When presented with copies of § 87(2)(b) two summonses at this interview, she stated that she could not remember whether she and PO Powers discussed § 87(2)(b) second summons.

NYPD Document(s)

Roll Call

- The 69th Precinct Roll Call (encl. 13i) indicates that PO Powers and PO Ofair were assigned to patrol Sector BD from 11:35 p.m. on August 18, 2009 to 7:50 a.m. on August 18, 2009 in RMP 2145.

Other Evidence

- § 87(2)(b) lodged an IAB complaint in regards to her missing § 87(2)(b) and ID. The investigation requested the results of that investigation, IAB case 09-40367, but was unable to obtain the findings § 87(2)(g)

Summonses for Incident and Disposition

- DMV records indicate that summonses § 87(2)(b) and § 87(2)(b) remain open cases. The next scheduled court date for both summonses is § 87(2)(b) in Brooklyn Traffic Court (encl. 15a-15b).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 19, 2010, with regard to this incident (encl. 19b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b), § 87(2)(g)

Subject Officer CCRB History

- PO EreK Powers has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2).
- PO Marisa Ofair has been a member of the service for four years and there are no substantiated CCRB allegations against her. (encl. 3).

Conclusion

Identification of Subject Officer(s)

- PO Powers and PO Ofair acknowledged that they interacted with § 87(2)(b) on the incident date. § 87(2)(b) § 87(2)(g)
- PO Powers confirmed that he issued § 87(2)(b) summonses. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority: Officers stopped a vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) denied having passed through a stop sign or a red light. § 87(2)(b), § 87(2)(g)

According to *Kamins New York Search and Seizure*, an officer is lawfully allowed to initiate a car stop if he or she observes a motorist “driving through a red light or a stop sign” (encl. 1a-1e). § 87(2)(g)

Allegation B- Discourtesy: PO EreK Powers acted discourteously towards § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

Team: 8

Investigator: _____ Inessa Abayev 2/25/10
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date